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April 20, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

**ORDER ENLARGING TIME FOR COMPLAINANT TO RESPOND TO
MOTION TO COMPEL**

The parties appeared for a telephone conference on March 21, 2018. Complainant appeared through its owner and general manager Xingliang Qian, who is not an attorney. Respondent appeared through its attorney Ren Rong Pan. No audio recording was made. The conference addressed the problems that have arisen with discovery and discovery responses in this proceeding.

On October 25, 2017, Respondent served interrogatories and requests for production of documents on Complainant. In a letter to the undersigned, counsel for Respondent states that "other than a superficial answer, Complainant has been coy about the questions raised and refused to produce information requested therein." (Letter dated January 16, 2018, from counsel for Respondent to Judge Guthridge.) During a telephone conference on March 21, 2018, Respondent was granted leave to file a motion to compel responses on or before April 11, 2018. Complainant was permitted to file a response to the motion on or before April 25, 2018. *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, Order ¶ 14 (ALJ Mar. 21, 2017) (Order Permitting Motion to Compel). Respondent filed the motion on April 6, 2018.

On April 17, 2018, the Office of Administrative Law Judges received an email from Xingliang Qian, the representative for Hangzhou Qianwang Dress Co., Ltd., stating:

Because my assistant (he has good English) is [traveling] now, he need be back end of April, so I need to reply or confirm all the [questions] before May 07.

Please confirm it is okay.

(Email dated Tuesday, April 17, 2018 9:07 AM, from echohats@aliyun.com to Judges@FMC.gov, and Attorney Pan, rpanlaw@yahoo.com.) The undersigned treated the request as a motion by Hangzhou Qianwang Dress Co., Ltd. for enlargement of time to May 7, 2018, to respond to Respondent's motion to compel filed on April 6, 2018. Respondent was ordered to file any response to the motion for enlargement of time by close of business April 19, 2018. *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, Order ¶ 14 (ALJ Mar. 21, 2017) (Notice to Parties Regarding Request for Enlargement of Time). Respondent served its opposition to the request on April 18, 2018.

Respondent opposes the enlargement of time because: (1) The request does not comply with the Rules; that is, it was not made pursuant to the rules governing motions and despite Complainant's pro se status, it should be held to the same rules as a represented party; (2) the excuse is disingenuous; that is, Complainant has had more than fourteen days to respond and in the telephone conference stated that fourteen days would give him adequate time to respond; (3) the claim that the assistant "with good English" is not a valid excuse because Complainant could have hired someone else with good English to prepare the response; and (4) there are problems with the answers and objections to the interrogatories and requests.

Regarding Respondent's first ground, Complainant is *pro se*. "The Commission has traditionally sought to 'do equity' rather than permit a party to be cut off from an opportunity to be heard due to a rigid application or mechanical applications of the Commission's rules." *Verucci Motorcycles, LLC v. Senator International Ocean, LLC*, FMC No. 06-05, Order at 4 (FMC May 8, 2008) (citing cases). The fact that there may be problems with Complainant's answers to the discovery is not relevant to the request for extension of time to contest that motion to compel additional responses. Although the other grounds may have some validity, I find on balance that additional time should be granted. Therefore, it is hereby

ORDERED that additional time be granted. The time for Complainant to respond to Respondent's motion to compel is enlarged to May 7, 2018. **NO FURTHER ENLARGEMENTS OF TIME WILL BE GRANTED.**


Clay G. Guthridge
Administrative Law Judge